

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

July 16, 2018

Sandra Little
Director of Operations
Salazar-Mendoza

Dear Ms. Little:

Thank you for the walk along the frontage last month and for the older survey material you sent afterward. This letter confirms the terms on which Saltmarsh Environmental Partners LLC will carry out a sediment sampling program for Salazar-Mendoza. It states the scope, the approach, the people who will do the work, the fee, and the standard terms we work under. If it also states your understanding, please sign where indicated and return one copy to me. A countersigned letter is what we treat as authorization. We do not open a job number without one, and we would rather settle the wording now than argue about it after a sample is in a jar.

Scope of Work

The program covers the collection, laboratory analysis, and reporting of sediment from the property frontage and the adjacent intertidal flat. It is organized in four parts: preparation of a sampling and analysis plan; a field mobilization to collect surface grabs and shallow cores at the stations that plan fixes; laboratory analysis of the recovered material under chain of custody; and a data report presenting the results, the quality control outcomes, and a comparison against the screening criteria applicable to the setting.

The sampling and analysis plan will be submitted to Salazar-Mendoza for review before any field work is scheduled. It will fix station locations and coordinates, sampling depths, the analytical suite, container and preservation requirements, holding times, and the frequency of field duplicates and blanks. Once you accept the plan, it governs the field program. Where the substrate or access forces a change in the field, the change will be recorded in the notebook with the reason for it and carried through into the report. We do not correct a station location quietly and present the result as though nothing happened.

Two things are outside this scope, and I would rather name them than let them be assumed. We are not retained to design a remedy, and we are not retained to speak to an agency on your behalf. If the data support either step, we will tell you so and quote it separately.

Approach

Stations will be located by GPS and occupied on foot during workable low-tide exposure, with the boat used where the flat will not carry a crew. Grabs will be taken from the surface interval named in the plan. Cores will be advanced by hand, logged for recovery, and described for texture, color, odor, and any visible sheen or debris before the target interval is cut out and homogenized. Samples will be placed on ice at the point of collection and delivered under chain of custody within the holding times the analytical suite requires.

Laboratory data will be reviewed against the plan's quality control limits before any result is repeated to you. Where a result is qualified, the qualifier travels with it into every table it appears in. That is not a formality. A number that has lost its qualifier is a number nobody can defend.

You should expect a hedge where the data earn one. Sediment chemistry varies over short distances, and a station tells you about a station. The report will say what was measured, where, and on what date, and it will keep what the results show separate from what they suggest. If you need certainty the sampling density does not support, the answer is more stations, not firmer adjectives.

Project Team

John Sanchez, our Senior Scientist, will lead the technical work and will be your day-to-day contact. He writes the sampling and analysis plan and the data report, and he will be in the field for both events. Heather Morton, Field Technician, will run the field program with him, keep the notebook, and transcribe the station data against it. I will serve as Managing Principal on the engagement. I read every deliverable before it leaves this office and I check the totals in the data tables myself. If you ever want a question answered above John's level, call me directly.

Fee and Commencement

The fee for the scope described above is \$56,500. That figure covers our labor, field equipment, containers and shipping, the laboratory charges for the suite named in the plan, and the report. It does not cover analyses added after the plan is accepted, a second mobilization made necessary by conditions outside our control, or agency fees. None of those would be incurred without your written authorization first. Work

will begin on July 26, 2018, subject to our receipt of the countersigned copy of this letter and to site access being available.

Fees and Payment

We invoice monthly for work performed and costs incurred, and invoices are payable thirty days from their date. Each invoice shows labor by person and hours, and direct costs at cost. If you question a charge, tell us and we will show you where it came from. Amounts unpaid after sixty days may, on written notice, suspend our work; we would rather call you than send that notice.

Term and Termination

The engagement runs from commencement through delivery of the data report. Either of us may terminate it on written notice. If you terminate, you owe us for work performed and for commitments we have already made on your behalf, including laboratory analyses in progress. A sample submitted cannot be unsubmitted. If we terminate, we will deliver the field records and any validated data in hand so that another consultant can pick the work up.

Confidentiality

We hold the data and the report confidential and will not release either to a third party without your written direction, except where disclosure is required by law or by an agency with jurisdiction over the site. In that case we will notify you before we release anything, and as early as the requirement allows. We may describe the general nature of the work in a statement of qualifications without naming Salazar-Mendoza or the site.

Limitation of Liability

Our services will be performed with the care and skill ordinarily used by environmental consultants practicing in this region under similar conditions. No other warranty, express or implied, is made. Conditions between and below sampling stations are inferred from the stations, not observed, and the report will say so. To the fullest extent permitted by law, our aggregate liability to Salazar-Mendoza arising out of this engagement is limited to the fee actually paid to us under it, and neither party is liable to the other for consequential or indirect damages.

Governing Law

This engagement is governed by the law of the state in which the site is located, without regard to its conflict of laws rules. Before either of us files anything, we will sit down with a mutually acceptable mediator and try to settle the matter. In my experience that conversation is usually about a table nobody read carefully, and it is cheaper than the alternative.

If the foregoing is acceptable, please sign below and return one copy to my attention. Questions about scope or schedule are best put to John Sanchez; questions about these terms should come to me. We appreciate the opportunity and will be ready to mobilize on receipt of the signed letter.

Sincerely,

Angela Flynn

Managing Principal

Date: July 16, 2018

Sandra Little

Director of Operations, Salazar-Mendoza

Date: July 16, 2018